

**Before the
OFFICE OF SCIENCE AND TECHNOLOGY POLICY
THE WHITE HOUSE
Washington, D.C. 20502**

Request for Information on the Development
of an Artificial Intelligence (AI) Action Plan

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COMMENTS OF NCTA – THE INTERNET & TELEVISION ASSOCIATION

Rick Chessen
Loretta Polk
Traci Biswese
NCTA – The Internet & Television Association
25 Massachusetts Avenue, NW
Suite 100
Washington, DC 20001
[REDACTED]

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I. INTRODUCTION

NCTA – The Internet & Television Association (NCTA) welcomes the opportunity to participate in this Request for Information to assist in the development of a national Artificial Intelligence (AI) Action Plan (Plan).¹ The Administration’s initiatives to remove barriers to American leadership in AI are admirable, and particularly relevant to our members.² NCTA members are among the world’s largest and most advanced broadband network providers. They provide cutting-edge video, voice, and data services nationwide. As developers³ of customized AI systems and deployers of AI technology, NCTA members use AI to improve customers’ experiences by improving customer service and offerings, and enhancing network operations and security. Simultaneously, NCTA members provide the backbone infrastructure necessary to support AI infrastructure, including data centers and cloud infrastructure, developer training of AI systems, and widespread user access to AI applications. NCTA members also constitute some of the largest content creators that inform and entertain millions across the globe. In that capacity, they are both creators of copyrighted materials for consumers and users of AI to generate and enhance content. NCTA members’ multifaceted roles in the AI ecosystem give NCTA both a vested interest in, and a broad perspective on, the discussion of policy needs to ensure continued American leadership in the AI sector.

In his first term, President Trump established a pro-innovation, light-touch regulatory environment for AI. The President has renewed and extended his vision by committing to fostering

¹ Request for Information on the Development of an Artificial Intelligence (AI) Action Plan, 90 Fed. Reg. 9088 (Feb. 6, 2025), <https://www.federalregister.gov/documents/2025/02/06/2025-02305/request-for-information-on-the-development-of-an-artificial-intelligence-ai-action-plan>.

² See Exec. Order No. 14179, § 1, 90 Fed. Reg. 8741 (Jan. 23, 2025), <https://www.federalregister.gov/documents/2025/01/31/2025-02172/removing-barriers-to-american-leadership-in-artificial-intelligence> (“2025 AI Executive Order”) (“With the right Government policies, we can solidify our position as the global leader in AI and secure a brighter future for all Americans.”).

³ NCTA members are generally deployers of AI, but in some cases will use foundation models developed by others as inputs to their own customized AI systems.

innovation and “ensuring that all Americans benefit from the technology and its transformational potential.”⁴ NCTA supports the development of a Plan to establish risk-based, non-prescriptive federal principles, prioritize responsible development and deployment of AI, and ensure the safety and security of Americans by prioritizing the protection of national security interests. To this end, NCTA encourages the Administration to work with Congress to enact legislation in the 119th Session that builds on Congress’s bicameral and bipartisan legislative efforts on AI and advance the important AI work by the National Institute of Standards and Technology (NIST). Urgently, this federal framework should entirely preempt the already growing patchwork of state AI laws.

Alongside a light-touch, pro-growth, and pro-innovation framework, NCTA advocates for encouraging continued expansion of the nation’s broadband infrastructure necessary for widespread access to AI at a faster pace. The Plan should continue to support investment in the digital infrastructure buildout and workforce development necessary to ensure Americans can harness the powers of AI. Officials should also work with academia, business, community-based organizations, and state and local governments to ensure that America’s job training programs are well-suited to handle the robust needs of the AI-powered future. Additionally, the U.S. must protect its interests by working collaboratively with allies globally to ensure level playing fields and protect its national security interests.

Finally, it is premature to regulate the thorny IP and copyright issues that presently face AI. While the courts address nascent legal questions involving AI and IP, policymakers should hold off on taking any action to let the courts do their work. This will provide the time and space

⁴ James David Vance, Vice President of the United States, Keynote Address at the Paris AI Summit, YouTube, at 5:11 (Feb. 11, 2025), <https://www.youtube.com/watch?v=64E9O1Gv99o>.

for all to understand how the current law applies rather than imprudently and hastily advancing new policies with unknown repercussions.

II. NCTA MEMBERS ARE RESPONSIBLY DEPLOYING AI TECHNOLOGY

AI is a versatile technology that has a broad range of applications across industries. NCTA members responsibly deploy AI technologies to optimize customer experiences, enhance operations, and deliver seamless and secure connectivity.

Customer Experience. Comcast uses AI to improve consumer accessibility and interactivity using voice recognition and speech-to-text technologies. Charter Communications uses AI systems to improve customer service calls and responses, including providing proactive responses to assist with customer inquiries. Both companies use AI digital assistants to help troubleshoot customer concerns. Cox uses AI to help manage contact centers and predict customer inquiries to allow the company to address concerns proactively and efficiently.

Enhanced Operations. Charter uses AI to improve operations by, among other things, providing AI-generated call summaries to field agents to respond more effectively on house calls. Comcast has AI tools to monitor, analyze, and enhance operations in real time, identifying potential network issues well in advance of any possible failure, and has automated 99 percent of its routing and back-end processing functions using AI to increase efficiency in managing network traffic. Cox, similarly, uses AI in its software development lifecycle – improving product usability and accelerating feature delivery while enhancing development efficiency through AI-assisted coding and automation.

Enhanced Security. AI is also a vital tool for NCTA members' efforts to securely manage connectivity for customers as they deploy innovative AI tools to defend their networks, and their customers' networks, against cybersecurity threats. AI tools allow consumers to identify and block

potential threats before they cause harm, address security gaps in real time, and decrease downtime after an attack. As bad actors grow more savvy and technically advanced, AI is providing an important bulwark against increasing threats.

These are just some examples of how NCTA's broadband network operating members use AI to improve the product for consumers. NCTA members continue to innovate, deploy, and use AI in new ways to ensure optimal customer satisfaction.

III. MAXIMIZING THE DEVELOPMENT AND DEPLOYMENT OF AI IN THE U.S. REQUIRES A SINGULAR, PRO-INNOVATION APPROACH

To maximize continued American leadership in AI, the Plan should encourage the deployment of AI by adopting clear, non-prescriptive standards that broadly preempt disparate state regulations on AI. This framework should continue the work done by bipartisan commissions in the House⁵ and Senate⁶ on this subject and empower NIST to set neutral standards to unlock AI's power.

A. The U.S. Should Develop a Uniform National Framework to Displace a Discordant Patchwork of State Regulations

To foster the growth of the nascent AI industry and ensure that the United States remains at the forefront of AI development, deployment, and adoption, the Administration should work with Congress to create a unified federal approach to AI comprised of a set of neutral standards for AI developers and deployers that would preempt the myriad of state laws currently being introduced and enacted around the country. A uniform national framework for AI is necessary to

⁵ Bipartisan Artificial Intelligence Task Force, *Bipartisan House Task Force Report on Artificial Intelligence*, 118th Cong. (Dec. 2024), https://republicans-science.house.gov/_cache/files/a/a/aa2ee12f-8f0c-46a3-8ff8-8e4215d6a72b/A163BDBF496ADA741F831E5BEBBCA06699B6AFF8CC34F4FDC4065BDA298295DF.ai-task-force-report-final.pdf (AI Task Force Report).

⁶ Bipartisan Senate AI Working Group, *Driving U.S. Innovation in Artificial Intelligence, a Roadmap for Artificial Intelligence Policy in the United States Senate* (May 2024), https://www.schumer.senate.gov/imo/media/doc/Roadmap_Electronic1.32pm.pdf.

bolster national security and American leadership and to avoid the unenviable developments plaguing data privacy policy, which has seen states fill the void left by the absence of a federal framework by creating a patchwork of differing – sometimes contradictory – state-level standards, restrictions, qualifications, and penalties.

There is increasing need for a national AI framework with strong preemption. As with data privacy, the state-by-state patchwork scenario will play out with AI. States have begun taking steps to regulate the technology in ways that will create conflict and inconsistency between states.⁷ Varying state AI laws will create uncertainty that will stifle innovation and investment by forcing companies to make national investment decisions under several different regulatory regimes at once. As the Bipartisan U.S. House Task Force on AI report recently found, “[a]bsent a uniform approach, different states can adopt different, ambiguous, or even conflicting regulatory requirements that are enforced by disparate state agencies [and which] create obstacles that businesses across the country struggle to comply with as they are forced to engage with numerous state legislators and agencies.”⁸ This leaves industry with two options: play regulatory hopscotch and provide different services and use different technology based only on geography, or conduct a “race to the bottom” to comply with the most onerous state-level regulations. Consumers lose in both instances because the patchwork approach jeopardizes investment in developing innovative new technologies and drastically increases regulatory compliance costs. Further, states with higher levels of “consumer protection” may deprive their citizens access to the most efficient services because. As described above, AI has been implemented in ways to enhance the consumer experience, and more stringent consumer protection laws could prohibit consumer access to

⁷ See, e.g., Colo. Rev. Stat. § 6-1-1701. Colorado passed the first comprehensive state legislation. Other states have used this approach but with divergent requirements.

⁸ AI Task Force Report at 27.

services from which they would otherwise benefit. However, federal preemption could “benefit businesses and individuals operating in multiple states since it [would] establish[] one consistent approach to compliance.”⁹

Existing laws of general applicability at the state and local level such as anti-fraud, anti-discrimination, and consumer protection laws would still apply to AI. As such, states and localities will continue to have strong tools against misuse of AI without forcing AI developers or deployers to operate within a patchwork regulatory environment. However, the current cacophony of state data privacy laws may undermine any preemptive, pro-innovation AI framework. Without preemption of state data privacy laws, regardless of federal rules, states may inadvertently regulate AI models by regulating the underlying data used to train models or tools.

B. Any National Framework Should Actually Target the Needs of AI

An AI regulatory framework should also target the unique risks and opportunities associated with AI technology and applications. As just one example, “there is no universal legal definition of AI,”¹⁰ which means that each new law creates substantial costs for developers and deployers and may confuse consumers as to what their protections and rights are. Further, many definitions currently being considered in legislation and regulations around the country – including the definition used in the Executive Order giving rise to this RFI¹¹ – are so broad that they arguably incorporate activities and technologies NCTA members have deployed prior to the development of Large Language Models. For example, some AI definitions are so broad as to arguably include

⁹ AI Task Force Report at 27.

¹⁰ AI Task Force Report at 26.

¹¹ See 2025 AI Executive Order, § 3, referencing 15 U.S.C. § 9401(3) (defining AI as “a machine-based system that can, for a given set of human-defined objectives, make predictions, recommendations[,] or decisions influencing real or virtual environments” and which “perceive real and virtual environments,” “abstract such perceptions into models through analysis in an automated manner,” and “use model inference[s] to formulate options for information or action.”).

Excel Spreadsheets that have automated functions programmed into them or routers that direct internet traffic. By working with industry to set definitions and standards that are pro-innovation, this Administration can ensure that American ingenuity is unlocked to its fullest.

C. The Framework Should Be Risk-Based and Avoid Undue Prescriptions of Activities

Risk allocation is an important factor in the development and deployment of AI technology.¹² The Plan should adopt a risk-based framework that avoids prescriptive regulation in favor of standards developers and deployers can understand and use to make informed decisions about benefits, potential harms, and appropriate mitigation measures.¹³

In a number of contexts, including AI, NIST has served as a productive venue for industry to collaborate on common technical issues and concerns and create objective standards without relying on prescriptive regulations which need regular, onerous updates as technology progresses. NIST “promote[s] U.S. innovation and industrial competitiveness by advancing ... standards[] ... in ways that enhance economic security and improve[s]” quality of life.¹⁴ Under the leadership of this Administration, NIST can work with industry to create a common understanding and framework for AI best-practices and standards.

The NIST AI Risk Management Framework is a good starting point. The current NIST framework provides resource guides for organizations to identify, evaluate, and manage risks throughout the AI lifecycle, and these resources can be improved with a pro-innovation mandate.

¹² As noted by the NIST, AI Risk Management Framework, “Risk” should be identified as “the composite measure of an event’s probability of occurring and the magnitude (or degree) of the consequences of the corresponding events.” NIST, *AI Risk Management Framework: Second Draft*, at 7 (Aug. 18, 2022), https://www.nist.gov/system/files/documents/2022/08/18/AI_RMF_2nd_draft.pdf (“NIST Framework”).

¹³ This includes when irresponsible use of AI could lead to harms to civil liberties or civil rights. However, NCTA focuses these comments on areas where it has the most experience and understands the risk factors best: data privacy, cybersecurity, and fraud detection.

¹⁴ NIST, “About NIST,” <https://www.nist.gov/about-nist> (updated Jan. 11, 2022).

Public-private partnerships are essential for developing consensus-based technical and safety standards to address challenges related to open-source development and interoperability. The more stakeholders involved in the development of these standards; the more parties can ensure that AI technology is deployed responsibly.

The AI Action Plan and any federal framework should recognize that AI is not a monolith and take a risk-based approach to regulation with high-risk AI subject to appropriately calibrated regulation. High-risk AI includes AI systems and applications that pose a serious risk to economic security, public health, or safety, or is used to make a consequential decision based on lawfully protected characteristics without human oversight. The types of data collected, and the data collection practices, should determine the necessary practices. Creating a framework that allows creators and developers to “understand and account for the inherent uncertainties and inaccuracies in their models and systems”¹⁵ and adopt context-specific strategies is superior to a one-size-fits-all regulation in a rapidly developing field with evolving opportunities and threats. A national strategy on AI and relatedly, a national strategy on data privacy, should set basic minimum expectations of protections without prescribing the best or only means of satisfying them. Moreover, considering the rapid pace of development of AI technologies, prescriptive government regulations may be obsolete by the time they finish OMB review. Developers that create high-risk AI should shoulder responsibility for ensuring that deployers can understand how the AI systems work and can help prevent fraud and ensure sensitive information remains safe.

¹⁵ NIST Framework at 7.

D. The Framework Should Emphasize Industry-Led Transparency and Security Practices

Commensurate with a risk-based liability system, the national framework should emphasize transparency and security practices based on industry-set standards and encourage innovation. The NIST Vision for Trustworthy AI¹⁶ emphasizes the need for “diverse stakeholder involvement” to build trustworthy AI technology. Moreover, as the AI Task Force Report found, “private sector engagement in[,] and the development of[,] industry-led technical standards could help provide a rigorous technical basis to guide the proper use of AI systems in decision-making.”¹⁷ Greater transparency involving industry, academia, community-based organizations, and government can “help ensure effective oversight of AI by the public and private sectors.”¹⁸

Beyond ensuring that all stakeholders are well-represented during the standard-setting process, transparency into the underlying model is also singularly important for deployers of AI technology. Any framework must ensure transparency for “high-risk” uses of consumer-facing products and products from developers to deployers. Otherwise, those who interact with high-risk models will be left without sufficient understanding of the system or recourse to ensure compliance with any applicable standards and protect their own interests. This is especially true where the data collector is the same as the developer. Even where the developer is not the same entity that collects data, without transparency between all parties, deployers and consumers will be left without insights into how foundational models have been developed, what data is in them, and how those factors impact the outputs of those models.

¹⁶ NIST, *Trustworthy and Responsible AI*, <https://www.nist.gov/trustworthy-and-responsible-ai> (last visited Mar. 14, 2025).

¹⁷ AI Task Force Report at 87.

¹⁸ AI Task Force Report at 87.

Similarly, the Plan should incorporate security-by-design principles and best practices through multistakeholder, public-private collaborations. The increasing reliance on vast datasets makes it essential to ensure privacy and security protections from design through deployment and use. As the AI Task Force Report explained, AI “is inherently linked to issues of data: how to obtain large amounts of data, how to analyze data for patterns, and how to use those patterns to make predications” which can “intentionally or unintentionally cause or exacerbate data privacy harms related to each of these facets.”¹⁹ NCTA members, which constitute the nation’s largest broadband providers, routinely deploy advanced measures like Resource Public Key Infrastructure (RPKI) and adhere to industry standards on data protection. NCTA members also participate in NIST processes to collaboratively develop cybersecurity guidelines. These guidelines are collaboratively developed to ensure technology-agnostic principles and standards. Under a pro-innovation regime, NIST guidelines can go further in helping the industry self-govern.

IV. FOSTERING WIDESPREAD ADOPTION OF AI IN THE U.S. REQUIRES CONCERTED EFFORTS TO ENSURE ACCESS AND TRAINING, AND INCREASE INTERNATIONAL COOPERATION

The creation of a pro-development and deployment Plan is necessary, but not sufficient, to ensure American leadership in AI. The United States must also increase access to AI technologies by ensuring that America’s digital infrastructure is robust and invest in education and training to make sure America’s workforce can utilize AI.

A. The U.S. Should Prioritize Increased Access to Broadband and Increasing Network Capacity

NCTA members constitute the backbone of America’s broadband internet system and serve as access points for every actor within the AI ecosystem. For successful AI research and

¹⁹ AI Task Force Report at 38.

deployment, high-capacity, secure, and energy-efficient broadband networks and data centers are essential. Without high-speed, reliable internet infrastructure, AI cannot and will not reach its full potential in the United States. Consumers and digital assistants need robust internet connectivity to interact with one another. Relatedly, many AI developers require the internet to access the Cloud where the tranches of data used to train AI models reside.²⁰ Any framework adopted by the federal government should both encourage pro-consumer uses of AI like those adopted (and currently under development) by NCTA members, as well as promote the necessary development and upgrades to America’s infrastructure to ensure that every American can access and harness the powers of AI. Policymakers must incentivize investment in reliable, sustainable, energy-efficient networks and hardware to drive innovation and deliver broad economic and environmental benefits.

B. The Framework Should Also Ensure U.S. End-Users Are Well-Versed in How to Use AI Tools

Beyond the physical infrastructure, the United States must also invest in its human capital capabilities related to AI. NCTA supports initiatives that address technical challenges like model explainability and safety standards along with education and workforce training programs. Data from the National Skills Coalition (NSC) highlights the critical need for such investments.²¹ In its February 2023 report, the NSC found that “92 percent of all job ads require[] definitely digital or likely digital skills” but “nearly one-third of U.S. workers do not have foundational digital skills.”²² To close this gap, the NSC Report stated that action is required by “both private employers and

²⁰ See, e.g., Off. of Tech. Staff, *FTC Partnerships Between Cloud Service Providers and AI Developers: FTC Staff Report on AI Partnerships & Investments 6(b) Study*, Section 5, at 29-37 (Jan. 2025), https://www.ftc.gov/system/files/ftc_gov/pdf/p246201_aipartnerships6breport_redacted_0.pdf.

²¹ Amanda Bergson-Shilcock & Roderick Taylor, *Closing the Digital Skill Divide*, Nat’l Skill Coal. (Feb. 2023), https://nationalskillscoalition.org/wp-content/uploads/2023/02/NSC-DigitalDivide_report_Feb2023.pdf (“NSC Research Report”).

²² NSC Research Report at 4.

public policymakers.”²³ This imperative will only increase as AI becomes an ever-more-important factor in the economic development policies and business’s bottom lines.

The Bipartisan AI Task Force Report also found that “[a]ddressing the future needs of the domestic AI industry must start with fostering AI talent. However, one of the major challenges to [that goal] is the lack of widespread basic literacy in STEM concepts.”²⁴ The Bipartisan Task Force Report also highlighted the importance of public-private partnerships, as “American leadership in many critical and emerging technologies has historically been rooted in the U.S. government-university-industry R&D ecosystem and workforce pipelines.”²⁵ NCTA supports the Bipartisan Report’s conclusion that “AI literacy is crucial not only for developing a skilled workforce and positioning our nation as a leader in this critical field but also for mitigating ethical and other challenges associated with AI.”²⁶ As NCTA members have begun deploying AI tools and technology to supplement their own workforces, ensuring adequate knowledge and understanding has been instrumental.

C. International Cooperation Is Urgent and Necessary to Protect National Security

While the United States builds its AI systems, improves the necessary infrastructure, and expands workforce development for the AI-powered 21st century, it must also ensure that it remains internationally competitive. This will require international collaboration and cooperation with allies. Increased cooperation, along with appropriate import and export controls to prevent technology transfers that would harm American interests, will ensure that American AI products

²³ NSC Research Report at 7.

²⁴ Bipartisan AI Task Force Report at 89.

²⁵ Bipartisan AI Task Force Report at 95.

²⁶ Bipartisan AI Task Force Report at 96.

and tools remain cutting-edge and competitive. Further, encouraging global norms and agreements enshrining AI oversight will help keep the playing field level.

At the same time, although AI has immense potential for improving efficiency and quality of life, “[l]ike any major dual-use technology, AI has the potential to both bolster and undermine national security.”²⁷ The Bipartisan AI Task Force Report found that AI is a critical component of national security, and that U.S. adversaries are “developing extremely advanced AI models, tools, and applications” which pose threats to U.S. interests.²⁸ The U.S. Government is investing in both offensive and defensive AI capabilities, but any adopted national Plan must also prioritize protection of privately owned and operated systems, including the broadband infrastructure NCTA members build, maintain, and protect. As noted above, NCTA members are using AI-powered security tools, which can learn and adjust in real-time, to guard their networks from attacks. However, as AI has the power to multiply the attacks against accessible systems in severity and number, any national framework should also prioritize protecting U.S. critical infrastructure.

V. INTRODUCING NEW IP OR COPYRIGHT REGULATIONS RELATED TO GENERATIVE AI IS PREMATURE AT THE PRESENT MOMENT

NCTA represents companies that produce and deliver engaging content to the American people, help drive human creativity and ensure it flourishes in this country, and contribute significantly to the nation’s economic output.²⁹ The AI Plan should ensure the intellectual property rights that are so important to these great American enterprises, and make America’s creative industries the envy of the world, are not undermined. NCTA agrees with the Motion Picture Association’s recent Congressional testimony “that there is no need for legislation or special rules

²⁷ Bipartisan AI Task Force Report at 40.

²⁸ Bipartisan AI Task Force Report at 53.

²⁹ 2025 AI Executive Order, § 2 (“It is the policy of the United States to sustain and enhance America’s global AI dominance in order to promote human flourishing, economic competitiveness, and national security.”)

to apply copyright law in the context of AI” at present.³⁰ With the advent of generative AI, courts have begun examining the scope of current IP and copyright laws in the United States. Although AI technologies raise novel questions of human authorship and infringement, NCTA has seen little evidence they implicate anything beyond well-settled doctrines and principles of law.³¹

Policymakers should leave the courts to apply existing copyright laws, which are robust and well-litigated. Presently, courts are entertaining challenges to the Copyright Office’s decisions related to AI-generated or supplemented content³² and whether AI models trained on copyrighted materials infringe on those copyrights.³³ NCTA has confidence that the nation’s copyright laws are flexible enough to apply to new technologies. This is not the time to short circuit or rethink a well-honed and well-operating system. Policymakers should only engage in narrow, targeted, and informed ways to alter these laws if it becomes clear that the existing system has material gaps related to AI.

VI. CONCLUSION

NCTA’s member companies are at the forefront of delivering high-speed, reliable internet services underpinning AI-enabled applications and creating the content which inspires billions.

It cannot be overstated that a pro-innovation, light-touch regulatory environment based on flexible, risk-based standards, transparent development, and the establishment of a coherent and consistent national framework are vital for the continued development of America’s AI future.

³⁰ *Artificial Intelligence and Intellectual Property: Part III – IP Protection for AI-Assisted Inventions and Creative Works: Hearing Before the Subcomm. on Courts, Intellectual Property, and the Internet of the H. Comm. on the Judiciary*, 118th Cong. (statement of The Motion Picture Association, Inc.), <https://www.congress.gov/118/meeting/house/117077/documents/HHRG-118-JU03-20240410-SD001.pdf> (MPA Statement).

³¹ MPA Statement at 2; *see also, compare, Burrow-Giles Lithographic Co. v. Sarony*, 111 U.S. 53, 58 (1884) (explaining human authorship requirements for copyright protection) *with* Copyright Registration Guidance: Works Containing Material Generated by Artificial Intelligence, 88 Fed. Reg. 16190 (Mar. 16, 2023).

³² *See, e.g., Thaler v. Perlmutter*, 687 F. Supp. 3d 140 (D.D.C. 2023); *appeal docketed*, No. 23-5233 (D.C. Cir. Oct. 18, 2023).

³³ *See, e.g., N.Y. Times Co. v. Microsoft Corp.*, No. 1:23-cv-11195 (S.D.N.Y. filed Dec. 27, 2023).

Broadly preempting state patchwork regulations are vital to maintaining American competitiveness. Beyond regulatory environments, continued investment in digital infrastructure and workforce development will be key to ensuring that the AI models developed and deployed in the United States supplement, rather than replace, workers in America's economy. Finally, policymakers should not preemptively amend IP protections without evidence current law is inadequate.

NCTA looks forward to continuing dialogue with OSTP and all stakeholders to shape policies which support an innovative and secure AI future.

Respectfully submitted,

/s/ Rick Chessen

Rick Chessen
Loretta Polk
Traci Biswese
NCTA – The Internet & Television Association
25 Massachusetts Avenue, NW
Suite 100
Washington, DC 20001
[REDACTED]

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